

STANDING ORDER NO. 250

Subject:- Maintenance of law and order at the time of removal of unauthorised encroachments and hawkers causing obstruction.

I. Introduction :-

The problem of unauthorised encroachment on public land has become grave in many areas. This Standing Order aims at clarifying the rôle of the Police Department on the subject.

II. Legal provisions:-

(a) Public lands:- By virtue of section 466-A, of the Delhi Municipal Corporation Act, 1957 amended vide Act, No. 42 of 1984, Violation of certain sections of the Corporation Act has been made cognizable. The offenders violating the provisions of various sections of the Act can be arrested on the complaint of or information received, from Dy. Commissioner of M.C.D. to lodge complaint with Police, vide notification No.F.1/22/77-LSG/Vol-III(Policy)/1323 dated 7.3.1986 (annexure-I).

III. Need of eternal vigilance:-

(b) The local police shall exercise sharp vigil to check encroachments on public lands suo-moto & bring instances to the notice of local bodies/departments concerned in writing through the DCsP of the Distt. concerned under advice to PHQ. Steps shall simultaneously be taken to stop further encroachments. Prompt cognizance in such matters shall be taken on receipt of such complaints from the designated officials of M.C.D. for appropriate legal action under the provisions of the Act.

IV. Construction on Private lands:-

The Police has no power to verify whether the construction on a particular piece of land is taking place as per approved plan or otherwise. For this too, the complaint has to be made by the concerned civil authorities. Once, however, the matter is reported or a complaint lodged by the competent authority with police, steps shall be taken by the local police to prevent further unauthorised construction immediately.

V. Repair works:-

Police shall not interfere in repair works taken up by the inhabitants within building bye-laws No. 641 or cause any harassment to the owners/builders until a report is received from civic bodies. Detailed instructions in this connection already issued vide this Hdqrs. memo. No. 3629-36/C&T-AC-V, dated 11.2.88 (annexure-II) shall be followed.

VI. Vendors/Hawkers:-

A large number of vegetable vendors and other hawkers use the main roads, foot-paths etc. for display and sale of their goods. Such encroachment is clear violation of the provisions contained in section 83(d) and (e) of the Delhi Police Act, 1978. Besides this, section 28(i) (b) of the Delhi Police Act, 1978 read with Regulations 14 and 15 of Regulation of Traffic and other Matters (Delhi Union Territory) Rules, 1959 are also relevant on the subject. These sections prohibit occupation of a street or sale or exposure of goods for sale on any street etc. so as to cause obstruction to traffic or inconvenience to public. It shall, therefore, be the duty of SHOs and their field staff to keep roads/foot-paths etc. clear of all encroachments by hawkers and squatters etc. and also to prevent juggies from coming up by taking firm action against such encroachments.

VII. Demolition Operations:-

It is the duty of the Police to maintain law and order at the time of demolition operations conducted by DDA and other local bodies for removal of encroachments. For this purpose, the Police has to make suitable arrangements. All Distt. DCsP and DCP/PCR shall provide necessary force for demolition purposes to DDA/MCD as per availability and requirement. The following guidelines shall be followed in such operations:-

(i) The local bodies such as MCD, NDMC & DDA shall be asked to intimate to the District DCP concerned sufficiently in advance the date venue, quantum of operations, so that the District DCP can make an assessment of the situation from the law and order point of view and requisition additional force, if any required.

(ii) On receipt of information, the Distt. DCP shall have a quick assessment made. If in his opinion the operation can be launched, he will requisition additional force, from DCP/PCR, who shall be respon-

sible to provide the out-side force. On the other hand, if the Distt. DCsP feels that the operation should be postponed either from the law and order point of view or due to non-availability of force at that time, he shall inform the local body accordingly suggesting another date after informally discussing the matter with the officers concerned. He shall, in addition, keep the Addl. C.P. concerned posted with developments.

(iii) Before any operation is launched, the officers and men, put on duty shall be properly briefed, fully equipped with shields, lathies and arms if any required. They shall be kept under proper check and the principle of use of minimum force shall be kept in view.

(iv) Some times requests are received for the supply of additional force for maintaining law and order at the time of impounding of cattle and for the protection of mobile courts. Procedure as mentioned above shall be followed whenever a big operation of such nature is launched and the District Police shall make arrangements to maintain law and order.

VIII Supersession clause:-

Previous S.O. No.250 issued vide this Hdqrs. No.18239-400/C&T-AC-III, dated 28.7.77 is hereby cancelled. This also supersedes circulars issued vide this Hdqrs. Nos. 1631-1731/C&T-AC-III, dated 24.1.86, 6515-6615/C&T-AC-III, dated 5.3.86, 9602-12/C&T-AC-III, dated 30.3.86, 20110-120/C&T-AC-III, dated 13.6.86, 24257-356/C&T-AC-VI, dated 31.7.86, 26562-700/C&T-AC-VI, dated 20.8.86, 36231-52/C&T-AC-V, dated 14.12.75, 2612-88/C&T-AC-V, dated 1.2.88, 14825-975/C&T-AC-V, 14.6.88, and 21997-22017/C&T-AC-V, dated 26.8.88.

Sd/-

(KANWALJIT DEOL) DCP/HQ(II),
for COMMISSIONER OF POLICE:DELHI.

No.6144-6400/XXIX/86/Spl./C&T-AC-V, dated the 25/1/1989.

ANNEXURE - I

(TO BE PUBLISHED IN THE DELHI GAZETTE EXTRAORDINARY
PART)

DELHI ADMINISTRATION, DELHI
(LOCAL SELF GOVT. DEPTT.)
VIKAS BHAWAN, NEW DELHI

No.F.1/32/77-ISG/Vol.III(Policy)/

Dated the March, 1986.

NOTIFICATION

In exercise of the powers conferred by Clause (b)(ii)(2) of Section 466-A and Clauses (a) & (b) of Section 467 of the Delhi Municipal Corporation Act, 1957, the Administrator of the Union Territory of Delhi hereby appoints the Commissioner and all the Deputy Commissioners of the Municipal Corporation of Delhi to

sible to provide the out-side force. On the other hand, if the Distt. DCsP feels that the operation should be postponed either from the law and order point of view or due to non-availability of force at that time, he shall inform the local body accordingly suggesting another date after informally discussing the matter with the officers concerned. He shall, in addition, keep the Addl. C.P. concerned posted with developments.

(iii) Before any operation is launched, the officers and men, put on duty shall be properly briefed, fully equipped with shields, lathies and arms if any required. They shall be kept under proper check and the principle of use of minimum force shall be kept in view.

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NOTIFICATION

In exercise of the powers conferred by Clause (b)(ii)(2) of Section 466-A and Clauses (a) & (b) of Section 467 of the Delhi Municipal Corporation Act, 1957, the Administrator of the Union Territory of Delhi hereby appoints the Commissioner and all the Deputy Commissioners of the Municipal Corporation of Delhi to

be sent to the Prosecution Department for maintaining its duplicate file and the third copy will retained in the concerned department. These complaints will be serially numbered by the concerned staff and separate register shall be maintained by them for this purpose. The person or persons committing the offence shall have to be clearly indicated in the form, with their parentage and their complete residential addresses. The particulars of the offence shall have to be clearly stated in consonance with the requirements of the Section so as to make a full proof case against the accused, leaving no scope for any doubt. The investigation must be thoroughly conducted after site inspection, collecting material evidence both documentary as well as oral in support of the allegations in the complaint. The concerned staff making a report should associate two witnesses who will testify the proceedings of the inspection having been carried out in their presence. In case, no witness to whom such request is made, comes forward, the field staff should append a note in their report to the effect that he tried to associate the neighbours or public witnesses (giving their names) but no one was prepared.

6. Before making a report, the field staff should ensure that the offender against whom a report is being made is alive and a genuine person. In this connection, if necessary local enquiry from the neighbours and advertising to the necessary records maintained the Corporation should also be made.

7. If it is found that the persons committing the offence is more than one, they should all be combined together in the commission of the offence stating their individual acts of involvement and they will be deemed to have entered into a criminal conspiracy and have common intention to commit the offence. They are also liable in the commission of the offence and be punished under 461 of the Act read with Section 34 and 120B of the Indian Penal Code. Here, special efforts shall have to be made in order to show the connection of such accused persons among themselves. It will be appreciated if some documentary evidence is also collected by the field staff in order to show their nexus with each other.

8. If it is found that the accused against whom report is made is a previous convict under the same section under which

11. The Challenging Official shall delete the portion in form 'A' which are not applicable.

12. After having completed his report, the Challenging Official will submit his report to the Zonal Engineer(B) or the Zonal Superintendent as the case may be. Zonal Engineer (Building) or Zonal Superintendent in turn will verify the report of the challenging official and will submit the same to ADC of ZAC as the case may be. The ADC or ZAC will then put up the report to Dy. Commissioner concerned for obtaining the orders for prosecution. The concerned Dy. Commissioner will satisfy himself about the report and then pass an order for the prosecution of the offender and the case will be sent to the Prosecution Department for further action according to law by the concerned department. The concerned Department will submit the case file alongwith the list of witnesses and other relevant records to the Municipal Prosecutor.

13. The Prosecution Department, after the receipt of the case file containing the list of witnesses and other relevant records from the concerned Department, will scrutinise the case and, after doing so, prepare a complaint in form 'B' for filing in court and obtain signatures of the same Dy. Commissioner who had forwarded the complaint.

14. Simultaneous to the Prosecution action, the Department can initiate action under Section 466 A of the Amended Delhi Municipal Corporation Act, to move the police to take cognizance of the offence and take further action under Code of Criminal Procedure, 1973, including the arrest of the accused. The field staff shall make a complaint for seeking the orders of the Dy. Commissioner in form 'C' properly filling in the blanks thereof. This format is more or less on the same pattern as form 'A' and shall have to be filled in according to the instructions indicated above. The portions in format 'C' not applicable will be deleted.

15. After obtaining the necessary orders for reporting the matter to the Police, a complaint in format 'D' shall be lodged to the concerned Police Station under the signatures of the same Dy. Commissioner or who had passed orders for making complaint to the Police as per form 'C'.

PROFORMA - A

Report No. _____

File No. _____

MUNICIPAL CORPORATION OF DELHI
(_____) ZONE

1. _____
2. _____
3. _____

I, _____ (name and designation) _____

zone beg to report that during my round of the area today, i.e.

on _____ at _____ AM/PM, I found in the presence of the under-

signed witnesses, that _____ S/o _____ resident of _____
_____ was committing the following
offence under Section _____ of the Delhi Municipal Corporation
Act, 1957 (hereinafter called 'the Act') which is punishable under
Section 461 of this Act:-

It is also reported that as accused No./Nos. _____ is/are
the owner/owners of the above named property, he/they had entered
into a criminal conspiracy to commit the above offence and had
common intention to commit the offence. He/they is/are also liable
for the commission of the aforesaid offence and to be punished under
Section 461 of the Act read with Section 34/120 B of the Indian
Penal Code.

It is further reported that the accused is a previous
convict for the same offence from the court of Shri _____ by
his order dated _____

Accused No./Nos. _____ who at the time of the commi-
ssion of the said offence was/were incharge of, and was/were respon-
sible to, the accused No. _____ for the conduct in its business as well
as accused No. _____ WHICH was a company in terms of Section
466 of the Act, are also liable for the commission of the above-said
offence under section 466 of the Act.

It is, therefore, requested that the above named accused
may be ordered to be prosecuted for the commission of the offence
U/s _____ 461 of the Act read with under Section 34/120B of the
Indian Penal Code.

Name of the witnesses:

- | | | |
|----|-----------------------------------|--|
| 1. | Signature _____

_____ | Signature _____
Name _____
Designation _____ |
| 2. | Signature _____

_____ | Zone _____

_____ |

Junior Engineer (Building)/
Licensing Inspector.

Verified that the above report of Shri _____
(with designation) is correct and the accused person/persons mentioned
therein may be ordered to be prosecuted for his/their having commit-
ted an offence under Section _____/461 of the D.M.C. Act read with

Section 34/120 B of the Indian Penal Code.

Z.A.C./A.D.C.

Zonal Engineer(Bldg.)/
Zonal Superintendent.

Kindly peruse the above reports. If approved, the accused person/persons named therein, may be ordered to be prosecuted.

D.C. ()

Z.A.C./A.D.C.

I have gone through these reports and am fully satisfied that the accused person/persons named therein has/have committed an offence U/s _____ 461 of the D.M.C. Act, 1957, read with Section 34/120 B of the Indian Penal Code. I, therefore, order that he they be prosecuted.

Municipal Prosecutor.

Dy. Commissioner ()

PROFORMA - B

IN THE COURT OF SHRI _____, METROPOLITAN MAGISTRATE,
DELHI
MUNICIPAL CORPORATION OF DELHI
THROUGH ITS DEPUTY COMMISSIONER (),

SHRI _____ COMPLAINTANT.
VERSUS

1. _____
2. _____
3. _____

ACCUSED.

CRIMINAL COMPLAINT UNDER SECTION ____/461
OF THE DELHI MUNICIPAL CORPORATION ACT,
1957, READ WITH SECTION 34/120 B OF THE INDIAN
PENAL CODE.

Sir,

The complaint - Municipal Corporation of Delhi, respectfully beg to state as under :-

1. That according to the report of Shri _____ (name and designation) of _____ zone dated _____ accused _____ on _____ at _____ AM/PM was found committing the following offence under Section _____ of the Delhi Municipal Corporation Act, 1957, (hereinafter called 'the Act') which is punishable under Section 461 of the Act;

2. That as accused No./Nos. _____ is/are the owner/owners of the

above named property, he/they had entered into a criminal conspiracy to commit the above offence and had common intention to commit the offence. He/they is/are also liable for the commission of the aforesaid offence and to be punished under Section 461 of the Act read with Section 34/120 B of the Indian Penal Code.

3. That the accused No./Nos. _____ who at the time of the commission of the said offence, was/were incharge of, and responsible to, the accused No. _____ for the conduct of its business as well as accused No. _____ who is a company in terms of Section 466 of the Act, are also liable for the commission of the said offence under Section 466 of the Act;
4. That the accused No./Nos. _____ is/are a previous convict for the same offence from the court of Shri _____ vide his order dated _____.
5. That I am authorised by the Administrator, Delhi, vide his order No. _____ dated _____ U/s 467 of the Act to file this complaint against the accused on behalf of the Municipal Corporation of Delhi;
6. That the above named accused have, therefore, committed an offence U/s _____ read with Section 461 of the Act read with Section 34/120B of the Indian Penal Code and are liable to be held guilty and punished according to law;
7. That I hereby authorise Shri _____ Asstt. Municipal Prosecutor, M.C.D. to conduct and to do all acts on my behalf during the trial proceedings in the case.

It is, therefore, prayed that the above named accused may be summoned, convicted and punished according to law.

I am filing this complaint in my official capacity and duty and as I have to devote most of the time in the field, it is further prayed that, in the interest of justice, I may be exempted from personal attendance in court, on each and every day of the hearing of the case. However, I undertake to be present in court, whenever so specifically summoned.

Delhi.

()
Dy. Commissioner ()
for and on behalf of
Mpl. Corpn. of Delhi.

Dated _____

Encl :-

1. _____ copies of complaint.
2. Report of Sh. _____ dt. _____.
3. List of witnesses.
4. Process fee.
5. Copy of letter of authority to the D.C..
6. Other documents/if any, (to be specified below).

PROFORMA - C

Report No. _____

File No. _____

MUNICIPAL CORPORATION OF DELHI
(_____ ZONE)

1. _____
2. _____
3. _____

Name (s)
of the
accused.

I, _____ (name and designation) _____
zone beg to report that during my round of the area today, i.e.
on _____ at _____ AM/PM, I found in the pre-
sence of the undersigned witnesses, that _____
S/o Shri _____ resident of _____
was committing the following offence under Section _____ of
the Delhi Municipal Corporation Act, 1957 (hereinafter called 'the Act')
which is punishable under Section 461 of this Act :-

It is also reported that as accused No./Nos. _____ is
are the owner/owners of the above named property, he/they had enter-
red into a criminal conspiracy to commit the above offence and had
common intention to commit the offence. He/they is/are also liable
for the commission of the aforesaid offence and to be punished under
Section 461 of the Act, read with Section 34/12u B of the Indian
Penal Code.

It is further reported that this offence is of a continuous
nature at site and the same is not likely to be stopped, unless the
accused are put under arrest under Section 466 A of the Act, since
its being a cognizable offence.

_____ may be requested to initiate

Corporation of Delhi.

that the above named accused have, therefore, committed an offence U/s _____ read with Section 461 of the Act read with Section 34/120 B of the Indian Penal Code and are liable to be held guilty and punished according to law ;

that I hereby authorise Shri _____ Asstt. Municipal Prosecutor, M.C.D. to conduct and to do all acts on my behalf during the trial proceedings in the case.

Is is, therefore, prayed that the above named accused may be summoned, convicted and punished according to law.

I am filing this complaint in my official capacity and duty and as I have to devote most of the time in the field; It is further prayed that, in the interest of justice, I may be exempted from personal attendance in court, on each and every day of the hearing of the case. However, I undertake to be present in court, whenever so specifically summoned.

()
Dy. Commissioner ()
for and on behalf of
Mpl. Corp. of Delhi.

Delhi.
Dated. _____

Encl :-

1. _____ Copies of complaint.
2. Report of Sh. _____ dt. _____
3. List of witnesses. ;
4. Process fee.
5. Copy of letter of authority to the D.C.
6. Other documents/if any, (to be specified below)

PROFORMA - D

MUNICIPAL CORPORATION OF DELHI
OFFICE OF THE DY. COMMISSIONER ()

No. _____

Dated _____

From:

The Dy. Commissioner ()
Municipal Corporation of Delhi,
Town Hall, Delhi.

To:

Shri _____
S.H.O. _____

THE DELHI MUNICIPAL CORPORATION (AMENDMENT) ACT, 1984
(No. 42 of 1984)

(2nd June, 1984)

An Act further to amend the Delhi Municipal Corporation Act, 1957.

Be it enacted by Parliament in the Thirty-fifth year of the Republic of India as follows :-

1. Short title and commencement.

(1) This Act may be called the Delhi Municipal Corporation (Amendment) Act, 1984.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint and different dates may be appointed for different provisions of this Act.

2. Amendment of Section 2.

In section 2 of the Delhi Municipal Corporation Act, 1957 (66 of 1957) (hereinafter referred to as the principal Act), after clause (1), the following clause shall be inserted, namely :-

(1-A) "Appellate Tribunal" means an Appellate Tribunal constituted under section 347-A;

3. Amendment of section 343.

In section 343 of the principal Act :-

(a) In sub-section (2) for the words "the court of the district judge of Delhi", the words "the Appellate Tribunal" shall be substituted;

(b) in sub-section (3)

i. In the opening portion, for the words "the court of the district judge may", the words, brackets, figures and letter "the Appellate Tribunal may, subject to the provisions of sub-section (3) of section 347-C, shall be substituted;

ii. In the proviso, for the words "the court of the district judge unless security, sufficient in the opinion of the court"; the words "the Appellate Tribunal unless security sufficient in the opinion of the said Tribunal" shall be substituted;

(c) in sub-section (4) for the words "save as provided in this section, no court", the words "No court" shall be substituted;

(d) in sub-section (5), for the words "Every order made by the court of the district judge on appeal and subject only to such order", the words, figures and letter "subject to an order made by the Administrator on appeal under section 347 D, every order made by the Appellate Tribunal on appeal under this section, and subject to the orders of the Administrator and the Appellate Tribunal on appeal" shall be substituted.

Name of the witnesses :

- 1) Signature _____ Signature _____

ii) Signatue _____ Name _____
_____ Designation _____
_____ Zone _____

Zonal Engineer (Building)/

Zonal Superintendent.

Verified that the overleaf report of Shri _____
(with designation) is correct and the SHO of the concerned Police
Station may be requested to initiate action against the accused U/s
466 A of the Act for the arrest and any other action permissible
under law.

Zonal Engineer (Building)/
Zonal Superintendent.

Z.A.C./A.D.C.

Kindly peruse the above reports. If approved, the S.H.O. of
the concerned Police Station may be requested to take action accord-
ingly.

D.C. ()

S.A.C./A.D.C.

I have gone through these reports and am fully satisfied that
it is a fit case where the SHO of the concerned Police Station may
be requested to take action against the accused U/s 466 A of the
D.M.C. Act. It is, therefore, ordered accordingly.

Z.A.C./A.D.C.

Dy. Commissioner
()

(c) in sub-section (6)

- (i) for the words "has been confirmed on appeal, whether
with or without variation", the words "has been con-
firmed on appeal, whether with or without variation
by the Appellate Tribunal in case where no appeal
has been preferred against the order of the Appellate
Tribunal, and by the Administrator in a case where
an appeal has been preferred against the order of
the Appellate Tribunal" shall be substituted;

- (ii) for the words "the court of the district judge", the
words "the Appellate Tribunal or the Administrator"
shall be substituted.

4. Amendment of section 344.

In section 344 of the principal Act :-

- (a) in sub-section (2), after the words "from the premises
the words" or to seize any construction material,
tool Machinery, scaffolding or other things used in
the erection of any building or execution of any work
shall be inserted ;
- (b) after sub-section (2), the following sub-section shall
be inserted, namely :-

"(24) Any of the things caused to be seized by the Commissions under sub-section (2) shall be disposed of by him in the manner specified in section 326".

5. Amendment of section 345.

In section 345 of the principal Act, in sub-section (1), for the words "within three months after the completion thereof, by a written notice", the words "after the completion thereof, by a written notice of not less than seven days" shall be substituted.

6. Insertion of new section 345-A.

After section 345 of the principal Act, the following section shall be inserted, namely :-

345-A Power to seal unauthorised constructions.

(1) It shall be lawful for the Commissioner, at any time, before or after making an order or demolition under section 343 or of the stoppage of the erection of any building or execution of any work under section 343 or under section 344, to make an order directing the sealing of such erection or work of the premises in which such erection or work is being carried on or has been completed in the manner prescribed by rules, for the purpose of carrying out the provisions of this Act, or for preventing any dispute as to the nature and extent of such erection or work.

(2) Where any erection or work or any premises in which any erection or work is being carried on, has or have been sealed, the Commissioner may, for the purpose of demolishing such erection or work in accordance with the provisions of this Act, order such seal to be removed.

(3) No person shall remove such seal except :-

(a) under an order made by the Commissioner under sub-section (2); or

(b) under an order of an Appellate Tribunal or the Administrator, made in an appeal under this Act.

7. Insertion of new sections 347A to 347E.

After section 347 of the principal Act, the following section shall be inserted, namely :-

347A. Appellate Tribunal.

(1) The Central Government shall, by notification in the Official Gazettee, constitute one or more Appellate Tribunals with head-quarters at Delhi, for deciding appeals preferred under section 343 of section 347B.

(2) An Appellate Tribunal shall consist of one person, to be appointed by the Central Government on such terms and conditions of service as may be prescribed by rules.

(3) A person shall not be qualified for appointment as

the presiding officer of an Appellate Tribunal unless he is, or has been, a district judge or an additional district judge or has, for at least ten years, held a judicial office in India.

(4) The Central Government may, if it so things fit, appoint one or more persons having special knowledge of, or experience in, the matters involving in such appeal; to act as assessors to advise the Appellate Tribunal in the proceedings before it, but no advice of the assessors shall be binding on the Appellate Tribunal.

(5) The Central Government shall, by notification in the Official Gazette, define the territorial limits within which an Appellate Tribunal shall exercise its jurisdiction, and where different Appellate Tribunals have jurisdiction over the same territorial limits, the Central Government shall also provide for the distribution and allocation of work to be performed by such Tribunals.

(6) For the purpose of enabling is to discharge its functions under this Act, every Appellate Tribunal shall have a Registrar and such other staff on such terms and conditions of service as may be prescribed by rules ;

(7) Provided that the Register and staff may be employed jointly for all or any number of such Tribunals in accordance with the rules.

347B. Appeals against certain orders or notices issued under this Act.

(1) Any person aggrieved by any of the following orders made or notices issued under this Act, may prefer an appeal against such order or notice to be Appellate Tribunals, namely :-

- (a) An order according or disallowing sanction to lay-out plan under section 313;
- (b) an order directing the alteration or demolition of any street under section 314;
- (c) a notice under sub-section (1) of Section 315;
- (d) a notice under sub-section (2) of section 317;
- (e) an order directing the disposal of things removed under Chapter XV or seized under section 344, or an order rejecting the claim of any person for the balance of the proceeds of sale of the things so disposed of;
- (f) an order sanctioning or refusing to sanction the erection of any building or the execution of any work under section 366.
- (g) an order with holding sanction under the provisions to sub-section (1) of section 337;
- (h) an order cancelling a sanction under section 338;
- (i) an order requiring the rounding off, splaying or cutting off the height of a building intended to be erected, or for the acquisition of any portion of a site under section 339;

- (j) an order disallowing the erection of any building or the execution of any work under section 340;
- (k) an order requiring the stoppage of any erection or work under section 344;
- (l) an order requiring the alteration of any building or work under section 345;
- (m) an order directing the sealing of an authorised construction under section 345A;
- (n) an order refusing to grant permission under sub-section (2) of section 345;
- (o) an order granting or refusing permission under sec. 347.
- (p) any such other order or notice relating to or arising out of planned development under the provisions of this Act as may be prescribed by rules.

(2) An appeal under this section shall be filed within thirty days from the date of the order or notice appealed against;

Provided that the Appellate Tribunal may entertain an appeal after the expiry of the said period of thirty days if it is satisfied that there was sufficient cause for not filing it within that period.

(3) An appeal to the Appellate Tribunal shall be made in such form and shall be accompanied by a copy of the order or notice appealed against and by such fees as may be prescribed by rules.

347C. Procedure of the Appellate Tribunal.

(1) The Appellate Tribunal may, after giving the parties to the appeal, an opportunity of being heard, pass such orders thereon as it thinks fit, confirming, modifying or annulling the order or notice appealed against or may refer the case back to the authority or officer against whose order or notice the appeal is filed, for a fresh order or notice, after taking additional evidence, if necessary, or such other action as the Appellate Tribunal may specify.

(2) The Appellate Tribunal shall send a copy of every order passed by it to be parties to the appeal.

(3) No Appellate Tribunal shall, in any appeal pending before it in respect of any order or notice under this Act, make an interim order (whether by way of injunction of stay) against the Corporation or against any officer or servant of the Corporation acting or purporting to act in his official capacity, unless an opportunity is given to the Corporation or its officer or servant to be heard in the matter.

Provided that the Appellate Tribunal may without giving an opportunity as aforesaid make an interim order as an exceptional measure if it is satisfied for reasons to be recorded by it in writing that it is necessary so to do for preventing any loss being caused to the person filing the appeal which cannot be adequately compensated in money;

Provided further that every such interim order shall if it is not vacated earlier, cease to have effect on the expiry of a

period of fourteen days from the date on which it is made unless before the expiry of that period, the Appellate Tribunal confirm or modifies that order after giving to the Corporation or its officer or servant an opportunity of being heard.

(4) Subject to rules, that may be made by the Central Government in this behalf, the awarding of damages in and the costs of, and incidental to, any appeal before an Appellate Tribunal, shall be in its discretion and it shall have full power to determine by and to whom and to what extent and subject to what conditions, if any such damages or costs are to be paid and to give, in its order disposing of an appeal, necessary directions for the purposes aforesaid.

(5) An order of the Appellate Tribunal made under this section may be executed or caused to be executed by it on the application of the person in whose favour the order has been made.

(6) In hearing and deciding an appeal or in the execution of an order, an Appellate Tribunal shall follow such procedure as may be prescribed by rules.

(7) Every Appellate Tribunal, shall, in addition on the powers conferred on it under this Act, have the same powers as are vested in a Civil Court while trying a suit under the Code of Civil Procedure, 1908, (5 of 1908) in respect of the following matters, namely:-

- a) Summoning and enforcing the attendance of persons and examining them on oath.
- b) requiring the discovery and inspection of documents.
- c) receiving evidence on affidavits;
- d) requisitioning any public record or copies thereof from any court or office;
- e) issuing commissions for the examination of witnesses or documents; and
- f) any other matter which may be prescribed by rules, and every proceeding of an Appellate Tribunal in hearing or deciding an appeal or in connection with the execution of its order, shall be deemed to a judicial proceeding with the meaning of section 193 and 223, and for the purpose of section 196, of the Indian Penal Code (45 of 1960) and every Appellate Tribunal shall be deemed to be a Civil Court for the purposes of sec. 195 and Chapter XXVI of the Code of Criminal Procedure, 1973(2 of 1974).

347 D: Appeal against orders of Appellate Tribunal:

(1) An appeal shall lie to the Administrator against an order of the Appellate Tribunal, made in an appeal under sec. 343 or section 347B, confirming, modifying or annulling an order made or notice issued under this Act.

(2) The provisions of sub-section (2) and (3) of section 347B and section 347C and the rules made there under, shall, so far as may be, apply to the filling and disposal of an appeal under this section as they apply to the filing and disposal of an appeal under those sections.

(3) An order of Administrator on an appeal under this section, and subject only to such order, an order of the Appellate Tribunal under section 347B, and subject to such orders of the Administrator an Appellate Tribunal, an order or notice referred to in sub-section (1) of the Section, shall be final.

347 E. Bar of jurisdiction of courts:

(1) After the commencement of section 7 of the Delhi Municipal Corporation (Amendment) Act, 1984, no court shall entertain any suit, application or other proceedings in respect of any order or notice applicable under section 343 or section 347B and no such order or notice shall be called in question otherwise than by preferring an appeal under those sections.

(2) Notwithstanding anything contained in sub-section (1) every suit, application or other proceeding pending in any court immediately before the commencement of section 7 of the Delhi Municipal Corporation (Amendment) Act, 1984, in respect of any order or notice appealable under section 343 or sec. 347B, shall continue to be dealt with and disposed of by the court as if the said section and not been brought into force.

8. Amendment of section 452

In section 452 of the principal Act, in sub-section (1), for the words "refer the case for determination to the court of the district judge of Delhi," the following shall be substituted, namely:-

"refer the case for determination"

(a) to the Appellate Tribunal, if such demand relates to the expenses incurred in taking necessary action for steps for the completion of any act or work required to be done or executed in the event of non-compliance with any notice, order or requisition under sections 317, 325, 343, 344 & 345;

(b) to the court of the district judge of Delhi, in any other case".

9. Amendment of section 456;

In section 456 of the principal Act -

(a) in sub-section (1), for the portion beginning with the words "complying with any provision" and ending with the words "such application is made", the following shall be substituted, namely:-

(b) Complying with -

the provisions of section 317, section 325, section 343 section 344, section 345 or section 347 or any bye-law made there under or with any notice or order issued under any such provision, apply to the Appellate Tribunal; and

(c) any other provision or any bye-law made there under or with any notice, order or requisition issued under such provision, apply to the court of the district judge of Delhi, and where such application is made".

(d) in sub-section (2), for the words "the court", the words "The Appellate Tribunal or the court, as the case may be, shall be substituted.

10. Amendment of section 461.

Section 461 of the principal Act shall be re-numbered as sub-section (1) thereof, and after sub-section (1) as so re-numbered the following sub-section shall be inserted, namely;

"(2) Notwithstanding anything contained in sub-section (1) whoever, contravenes; the provisions of sub-section(1) of section 317 of sub-section (1) of section 320 or sub-section(1) of section 321 of sub-section(1) of section 325 or section 339, in relation to any street which is a public street, shall be punishable with simple imprisonment which may extend to six months or with fine which may extend to five thousand rupees or with both".

11. Insertion of new section 466A.

After section 466 of the principal Act, the following section shall be inserted, namely;

466A. Certain offences to be cognizable:

The Code of Criminal Procedure, 1973 (2 of 1974) shall apply to:

- a) an offence under sub-section(5) of section 313 of sec.332 or sub-section (1) of section 333 or sub-section(1) of section 334 or section 343 or section 344 or section 345 or section 347;
- b) an offence under sub-section (1) of section 317 or sub-section (1) of section 320 or sub-section (1) of section 321 or sub-section 334 or section 325 of section 339 in relation to any street which is a public street;

as if it were a cognizable offence:-

- (i) for the purposes of investigation of such offence; and
- (ii) for the purposes of all matters other than -

(1) matters referred to in sec. 42 of that Code, and

(2) arrest of a person, "except on the complaint

of, or upon information received from such officer of the Corporation, not being below the rank of a Deputy Commissioner, as may be appointed by the Administrator.

Provided that offence of the contravention of any condition subject to which sanction was accorded for the erection of any building or the execution of any work shall be cognizable, if such contravention relates to any deviation from any plan of such erection or execution sanction by the Commissioner which is compoundable on payment of an amount under the bye-laws relating to buildings made under this Act."

12. Substitution of new section for section 467:

For section 467 of the Principal Act, the following section shall be substituted, namely :-

467: Prosecutions:-

Save as otherwise provided in this act, no court shall proceed to the trial of any offence;

- (a) under sub-section(5) of section 313 or section 332 or sub-section (1) of section 333 or sub-section (1) of section 334 or section 343 or section 344 or section 345 or section 347, except on the complaint or upon information received from, such officer of the Corporation, not being below the rank of a Deputy Commissioner, as may be appointed by the Administrator.
- (b) under sub-section(1) of section 317 or sub-section(1) of section 320 or sub-section(1) of section 321 or sub-section(1) of section 325 or section 339, if any such offence was committed in relation to any street which is a public street, except on the complaint of, or upon information received from, such officer of the Corporation, not being below the rank of a Deputy Commissioner, as may be appointed by the Administrator;
- (c) other than those specified in clauses (a) and (b) except on the complaint of, or upon information received from, any of the following appropriate municipal authorities, that is to say, the Commissioner, the General Manager(Electricity) or a person authorised by any of them by a general or special order in this behalf".

13. Amendment of Twelfth Schedule:

In the Twelfth Schedule to the principal Act :-

- (a) against section 313 sub-section(5), in the third column, for the letters and figures "Rs.500", the words, "Rigorous imprisonment which may extend to three years" shall be substituted, and the existing entry in the fourth column shall be omitted;
- (b) against section 332, in the third column, for the letters

of Police by Commissioner, Municipal Corporation of Delhi that a large number of complaints are being received regarding unnecessary police interference in repair works taken up by inhabitants within building bye-laws No. 6.4.1., and consequential harassment of the owners/builders. As per amended DDA/MCD/NDMC Act, Police is empowered to take cognizance against unauthorised construction/encroachment/repair on public land only on receipt of complaints from the concerned officers of DDA/MCD/NDMC. Besides police is also empowered to prosecute any person for unauthorised encroachment on public land u/s 83 D.P. Act, 1978. As per building bye-law No. 6.4.1., the following items can be carried out without obtaining any sanction from the MCD provided the structure on which these repairs are done is authorised and have been constructed with proper sanction:-

- a) Plastering and patch repairs.
- b) Re-roofing or renewal of roof including roof or intermediate floor at the same height.
- c) Flooring and reflooring.
- d) Opening and closing windows, ventilators and doors not opening towards other's property.
- e) Replacing fallen bricks, stones, pillars, beams, etc.
- f) Construction or re-construction of sunshade not more than 75 cm in width within one's own land and not overhanging over a public street.
- g) Construction or reconstruction of parapet exceeding 1m and not more than 1.15m in height and also construction of boundary wall as permissible under these bye-laws.
- h) Re-construction of portions of buildings damaged by storm, rains, fire, earthquake or any other natural calamity to the same extent and specification as existed prior to the damage, provided the use conforms to provisions of Master Plan.
- i) White washing, painting, etc. including erection of false ceiling in any floor at the permissible clear height provided the false ceiling in no way can be put to use as a left 1/mezz. etc.

Copy forwarded to the Commissioner, Municipal Corporation of Delhi, Town Hall, Delhi with reference to his d.o. letter No. PSC/E-in-C/104/88 dated 28.1.88 for information.

Sd/-
(KANWALJIT DEOL)
DY. COMMISSIONER OF POLICE:HQ(II),
DELHI.